K

Erase the trail · മായ്ച്ചു – 19 വർഷം കണക്കില്ല; "എല്ലാം ഹാജരാക്കി".

ISSUE

കോടികളുടെ നിക്ഷേപവും ചെലവും രേഖപ്പെടുത്തിയ സ്വന്തം Minutes നിഷേധിച്ച്, നിയമപരമായി സൂക്ഷിക്കേണ്ട 19 വർഷത്തെ കണക്കില്ലെന്ന് സത്യം ചെയ്യുന്ന D2-യെ, 20-ാം വർഷം Trust വാണിജ്യവൽക്കരിക്കാൻ അനുവദിക്കാമോ?

RULE

Trust Deed 2/IV/2007, cll. 2 & 16: *"The Managing Trustee also bound to maintain all records and accounts of the trust"*; Indian Trusts Act, 1882, s. 19: *"A trustee is bound … to keep clear and accurate accounts of the trust-property"* [accounts are mandatory].

Nagindas Ramdas v. Dalpatram Ichharam, (1974) 1 SCC 242: *"Admissions, if true and clear, are by far the best proof of the facts admitted"*; R.N. Gosain v. Yashpal Dhir, (1992) 4 SCC 683, para 10: *"Law does not permit a person to both approbate and reprobate"* [D2 cannot record crores and swear dormancy]; Gopal Krishnaji Ketkar v. Mohamed Haji Latif, AIR 1968 SC 1413 [adverse inference from withholding]. BSA 2023, s. 119 ill. (g): *"evidence which could be and is not produced would … be unfavourable to the person who withholds it"*.

APPLICATION

D2's Minutes Book, p. 19, 24.01.2026, item 4: *"Amount deposited / loan by the members till date … Dr. Ravindran Channar - Rs 1,00,00,000 …"*; *"Amount spent till date … Rs 11,45,85,900/-"* [Dr. Ravindran died 27.8.2022 (p. 5)].

D2's Affidavit in I.A. 5/2025, 16.02.2026, paras 4–5 and 13: *"the Trust has not received any funding … no books of account were maintained"*; *"the financial statement, ledgers, Audit report … is not available for production"*. D2's Objection in I.A. 5/2026, para 7: *"produced all documents … before the Hon'ble court"* [irreconcilable - and that affidavit procured I.A. 5/2025's closure, 04.03.2026].

CONCLUSION

D2's own Minutes destroy his sworn dormancy case and establish a prima facie breach of the duty to account. Recording crores, denying all funding and books, then swearing complete production is fraud on the Court. Dr. Ravindran's death makes further loss irreparable; prospective bookkeeping cannot reconstruct or segregate transactions entering a corpus whose opening balance, liabilities and prior expenditure - D2's own recorded ₹11.45 crore - remain denied. Production prejudices no lawful interest. Balance of convenience: an unaccounted Trust cannot safely continue a revenue-generating enterprise; only suspension prevents the disputed historic corpus and new commercial transactions from irretrievable commingling before trial.

L

Rewrite the constitution · തിരുത്തി – ഈ suit നടക്കെ, കോടതിയറിയാതെ, ഒരു amendment കൂടി.

ISSUE

ബാധ്യത സൃഷ്ടിച്ച രേഖകൾ ഹാജരാക്കാതെ *"nothing material has been concealed"* എന്ന് സത്യം ചെയ്ത് D2 സൃഷ്ടിച്ച pendente lite encumbrances, trial വരെ Trust property-യിൽ നിലനിൽക്കാമോ?

RULE

Indian Trusts Act, 1882, s. 11: *"except as modified by the consent of all the beneficiaries"* [unanimity required]. Sri Agasthyar Trust v. CIT, (1998) 5 SCC 588, para 15: *"a trustee ... can under no circumstances be regarded as having such a power"* [no power to rewrite]; TPA s. 52 [pendente lite transfers bind every taker, including the unjoined lessee]. S.P. Chengalvaraya Naidu v. Jagannath, (1994) 1 SCC 1: withholding a vital document is *"playing fraud on the court"* [concealed encumbrances].

APPLICATION

Plaint, O.S. 214/2025, 12.06.2025, Prayer 3: *"Declare Amendment Deeds No. 66/IV/2022 and No. 17/IV/2024 ... void for lack of unanimous consent"*; I.A. 3/2025 already sought restraint of 17/IV/2024; Deed 17/IV/2024: *"Registered ... on the 14th day of March 2024"* [eight days after O.S. 84/2024].

D2's Affidavit, 16.02.2026, para 9: *"I am producing original ... amendment deed No.66/IV/2022, 17/IV/2024, 38/IV/2026"* [the challenged act repeated pendente lite; sworn as originals, yet the two later deeds came as copies]; para 14: *"nothing material has been concealed"*. Minutes Book, pp. 15–17, 24.01.2026: *"A ten year lease Agreement ... for MEDA"* [plus four 11-month leases and the 5% AGOP agreement]. Objection in I.A. 6/2026, para 3: *"these are the only available document"* [MOA, AGOP agreement and four leases unproduced - instruments recorded as, or capable of, creating possession, profit share, operational control and further encumbrance].

CONCLUSION

The quoted instruments establish a prima facie pattern: amend during litigation, encumber in silence, then withhold the operative documents. Swearing both complete production and no concealment is fraud on the Court. Each day of operation performs and entrenches those concealed obligations, causing irreparable injury and obstructing restoration. Later production cannot undo possession, liabilities and third-party equities created meanwhile. A freeze defeats no lawful Trust interest; it preserves the estate until disclosure and adjudication. The balance of convenience requires that D2 be restrained from giving effect to any commercial arrangement affecting the suit property pending disclosure and adjudication of whether the operative lease, MOA, AGOP agreement and four leases create unauthorized possession, liability or encumbrance.

M | Siphon the money · ഊറ്റി – വാടകയുടെ ആദ്യ അവകാശി trustee തന്നെ.

ISSUE

ഒരു കണക്കുമില്ലാതെ ₹1.46 കോടി Trust കടമാണെന്ന് അവകാശപ്പെട്ട്, rent ആദ്യം തനിക്കും മകനും contractor-ക്കും തിരിച്ചടയ്ക്കാൻ D2-യെ അനുവദിക്കാമോ?

RULE

Deed 2/IV/2007, cl. 4 [trust money in a joint account, jointly operated]; Indian Trusts Act, 1882, s. 32: expenses must be *"properly incurred"*; s. 51: *"A trustee may not use or deal with the trust-property for his own profit"* [unproved self-payment prohibited]; s. 88 [any fiduciary advantage is held for the beneficiaries]. Khasgi Trust v. Vipin Dhanaitkar, 2022 INSC 738, para 45: *"The Trustees are not expected to deal with the Trust property, as if it is their private property."*

APPLICATION

D2's Minutes Book, p. 19, item 4, 24.01.2026: *"Resolved to pay back the amounts spent by Rameshchandran Channar, an amount of Rs 93,86,000/-, and Bimal R. Madhavan Rs 8,00,000/-, a total amount of Rs 1,01,86,000/- from the Trust account (Rental and profit share received from the tenant in a phased manner.)"* [the mover is the payee; the claim also appears as ₹1 crore and ₹90 lakh].

Minutes, pp. 17–18, item 2: *"take loan from M. C. Chandra Mohan or his associates for Rs 45,00,000/- … with 7% simple interest from the rent"* [D2's contractor]; p. 16: *"A ten year lease Agreement for a monthly rent of Rs 60,000/- for MEDA"*. D2's Affidavit, 16.02.2026, paras 4–5: *"no books of account were maintained"* [no ledger for the debts]. Objection in I.A. 6/2026, paras 3, 14: *"these are the only available document"*; *"nothing material has been concealed"* [agreements remain unproduced].

CONCLUSION

The Minutes establish a prima facie insider-payment scheme: the disclosed rent is expressly earmarked to service shifting, unverified claims of D2, his son and contractor; the contractor earns 7% while the Trust earns 0.6%. On the fixed rent alone, interest consumes about 44% and the insider liabilities absorb about 22.3 years of rent—unless the withheld profit-share agreement proves otherwise. Operations generate the very revenue already committed to these disputed insider claims. Claiming complete disclosure without one audited account or GST invoice is fraud on the Court. Freezing payment extinguishes no legitimate debt; it merely prevents D2, decision-maker and principal payee, from converting disputed entries into irreversible payments before verification. The balance of convenience lies with the beneficiaries, not the trustee paying himself; suspension alone stops further liabilities accruing meanwhile.

N

Alienate the estate · കൊണ്ടുവന്നു – പിന്നണിയില്ലാത്ത കമ്പനി; trustee അതിന്റെ വക്കീലും.

ISSUE

Board approval-ന് മൂന്ന് മാസം മുമ്പേ ഒപ്പിട്ട ten-year leaseും, approval-ന് മുമ്പേ Trust premises-ൽ lessee നേടിയ GST registrationും ab initio അസാധുവല്ലേ?

RULE

Indian Trusts Act, 1882, s. 36, proviso: *“the best yearly rent that can be reasonably obtained”* [statutory lease standard]; s. 48 [co-trustees must all join]. Marathwada University v. Seshrao Balwant Rao Chavan, (1989) 3 SCC 132, para 27: *“any action without power has no legal validity. It is ab initio void and cannot be ratified”* [later approval cannot cure want of power].

APPLICATION

Minutes, 21.08.2025: *“Resolved to authorize the Managing Trustee … to find a suitable operator for leasing out”* [authority to search, not sign]. D2’s Objection in I.A. 5/2026, para 10: *“lease deed No.3237/2025 dated 27/10/2025”* [ten years; company incorporated 07.08.2025; no prior unanimous resolution, tender, valuation or escalation]. Even D2’s own impugned instruments require unanimous consent - Deed 17/IV/2024, cl. 32(b)(ix); Deed 66/IV/2022, cl. 17(c) [as admissions against D2 only]. Minutes, 24.01.2026: *“is ratified and approved unanimously”* [three months after execution].

Minutes Book, p. 16, 24.01.2026: *“A ten year lease Agreement for a monthly rent of Rs 60,000/- for MEDA”* [₹7.2 lakh yearly; 0.6% on ₹11,45,85,900 while Trust borrowing is 7%]. GST registration effective 09.12.2025: *“2/242, Alumoottil, Muttom, Haripad”* (GSTIN 32ABQCS9416G1Z1) [occupation before approval, pendente lite].

CONCLUSION

The documents establish a strong prima facie case: express authority only to find an operator, execution on 27.10.2025 without prior unanimous approval, GST registration at the Trust premises by 09.12.2025, and attempted ratification on 24.01.2026. At the least, retrospective ratification cannot defeat a beneficiary’s pending suit or sanitize possession delivered without prior unanimous authority. Concealing that chronology while asserting disclosure is fraud on the Court. Each operating day entrenches third-party possession and makes restoration harder—irreparable injury. Suspension harms no lawful Trust interest; it preserves the estate and revenue pending trial. The balance of convenience requires temporary suspension of all operations under the impugned lease until authority, unanimity and best-rent compliance are decided.

0 Deface the heritage · പൊളിച്ചുപണിതു – heritage-നെ healthcare-നായി മുറിച്ചു.

ISSUE

മൂന്ന് suits pending ആയിരിക്കെ മറച്ചുവച്ച lease നടപ്പാക്കി, 125-year-old Meda-യിൽ treatment blockും partitionും നിർമ്മിക്കാൻ D2-യെ അനുവദിക്കാമോ?

RULE

Deed 2/IV/2007: *“protect the existing heritage buildings and age old Nalukettu”*; Indian Trusts Act, 1882, s. 18: *“destructive or permanently injurious”*; s. 61: *“contemplated or probable breach”*; CPC O. XXXIX R. 1(a): *“wasted, damaged”* [preventive jurisdiction]. Maharwal Khewaji Trust v. Baldev Dass, (2004) 8 SCC 488, para 10: *“unless and untill [sic] a case of irreparable loss or damage is made out … the court should not permit the nature of the property being changed”*.

APPLICATION

D2’s Minutes Book, p. 17, 24.01.2026: *“accepted”*; *“to build a treatment block and to make a partition in the ground floor of Meda”* [permanent works]. Minutes, p. 20, item 6: *“OS 84/24, OS 243/23, OS 214/25”* [three pending suits; *“OS 243/23”* sic for O.S. 243/2024].

D2’s Objection, 19.06.2026, para 11: *“Lessee shall not make any additions, alterations or improvements in the trust building of permanent nature”* [D2’s own prohibition]; para 3: *“They have already inaugurated their business activities in the leased property”* [injury current and continuing].

CONCLUSION

The Minutes authorise precisely what D2’s oath prohibits, establishing a prima facie breach of the duty to preserve the Meda and Nalukettu. Concealing the lease and works during three suits, then denying permanent alterations, is fraud on the Court. Once original heritage fabric is destroyed, money cannot restore it; the injury is irreversible and continuing. Restraint merely enforces D2’s own sworn restriction and causes no lawful prejudice. The balance of convenience overwhelmingly requires an immediate halt to commercial use, construction and alteration.

P

Divert the legacy · വഴിതിരിച്ചു – inventory-ക്ക് മുമ്പേ heirlooms കൈമാറി; കുടുംബപൈതൃകം stranger-ന്റെ brand ആയി.

ISSUE

Inventory-ക്ക് മുമ്പേ Trust heirlooms pendente lite lessee-ക്ക് കൈമാറി, family heritage അതിന്റെ commercial identity ആയി market ചെയ്യാൻ അനുവദിച്ചത് founder's object-ന്റെ diversion അല്ലേ?

RULE

Deed 2/IV/2007, recital: *"fraternity among the members ... Preserving heritage of the family"*; Indian Trusts Act, 1882, s. 15: *"man of ordinary prudence ... if it were his own"* [heirlooms require prior safeguards]; s. 88: *"pecuniary advantage"* [no commercial capture of Trust heritage].

APPLICATION

D2's Minutes Book, pp. 19–20, item 5, 24.01.2026: *"Resolved to hand over to the tenant, old furniture ... after restoration"*; *"Inventorying ... will be prepared and kept as records"* [handover first, inventory later - no valuation, photographs, acknowledgment, insurance or item-wise receipt fixing what entered the lessee's custody; two heirlooms - a mounted wild bison skull and deer antlers - already missing: Plaint, para 14; I.A. 9/2025].

Marketing video permitted by D2: *"450 years"* [no Trust record or resolution authorises the claim for the lessee's brand; BSA 2023, s. 63(4) certificate to be produced]. D2's Objection in I.A. 5/2026, 19.06.2026, para 11: *"permitted to use the said property only for its wellness and leisure retreat befitting its profile and protecting its legacy and heritage purpose"* [family heritage subordinated to the lessee's *"profile"*].

CONCLUSION

The quotations establish a prima facie diversion of Trust purpose and breach of prudence: heirlooms first, inventory later, then family identity marketed by a pendente lite company 81 days old at lease execution. Calling this *"protection"* while withholding inventory and authority is fraud on the Court. The heirlooms and family identity are not incidental décor but the commercial identity and consideration the operation itself exploits under its "450-year" brand; with two objects missing and the lessee having no independent entitlement, continued custody risks dispersal and permanent loss of provenance—irreparable injury damages cannot cure. Return and neutral inventory burden no lawful Trust interest. The balance of convenience requires return, a sealed neutral inventory, and prohibition of all commercial display, use and custody of the heirlooms and family identity.

Q

Disinherit the heirs · ഒഴിവാക്കി – ജന്മാവകാശമായ status, trustee resolution കൊണ്ട് റദ്ദാക്കാനാവില്ല.

ISSUE

Beneficiary-യെ സ്വന്തം tharavad-ൽ നിന്ന് പുറത്താക്കി *"trespasser"* എന്ന് plead ചെയ്ത D2, പകരം private company-യെ ten-year commercial possession-ൽ പ്രതിഷ്ഠിച്ച് exclusion തുടരാനാകുമോ?

RULE

Deed 2/IV/2007, p. 3: *"for the benefit of the members of the Alumoottil family who are the descendents of Alumoottil Chellamma Channathy"* [status by descent]; cl. 14: *"nominate among themselves as Trustee or Trustees"* [trusteeship only]. Indian Trusts Act, 1882, s. 3: *"an obligation annexed to the ownership of property … for the benefit of another"* [trustee is custodian, not owner].

APPLICATION

Minutes Book, 22.12.2023, item 2: *"trustees can nominate only one of his descendants / legal heirs as benificiary"* [sic; cl. 14 concerns trustees]. O.S. 243/2024 Plaint, 14.08.2024, para 4: *"the defendant herein doesn't have any connection with the plaintiff trust. He is not a member of the plaintiff trust"* [descendant recast as stranger]. Minutes, 24.01.2026, p. 20, item 6: *"have to be terminated from the beneficiary status through legal means"* [status admitted]. D2's Affidavit, 16.02.2026, para 11: *"The plaintiff is not a beneficiary to Alummoottil Taravad Trust"* [direct contradiction].

FIR 574/2024, 10.08.2024, on D5's complaint, records no entry, yet O.S. 243/2024 pleads trespass. D5–D7's Objection, 18.02.2026, paras 2–3, swears they *"have no connection with Alummoottil Tharavadu Trust"* [the very excluders disclaim Trust authority; no Trust or D2 complaint exists].

Order dated 03.12.2025, I.A. 1/2024 in O.S. 243/2024, paras 9–10: *"I am unable to accept the case of plaintiffs that defendant has no right over plaint schedule property"* [corroborative - Arjun Singh, AIR 1964 SC 993]. Minutes, 24.01.2026, p. 17, item 1: *"to start the commercial terms with effect from 1/3/2026"* [after the adverse order; rent then pre-committed to D2, son and contractor].

CONCLUSION

The record reveals the device: exclude the beneficiary, plead trespass without entry, fail to establish the asserted absence of right, then install a company to continue exclusion. The Deed and D2's Minutes establish status; denial on oath is fraud on the Court. Commercialization converts D2's failed exclusivity claim into a third-party fait accompli, making eventual relief practically ineffective—irreparable injury beyond money. Suspension harms no lawful Trust interest and restores the pre-commercialization position without granting final possession. Prima facie case and balance of convenience lie with the beneficiary, not the custodian placing Trust property in disputed third-party possession.